

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING**

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

RESPONDENTS' PROPOSED SUPPLEMENTAL FINDINGS OF FACT

In accordance with the Honorable ALJ's August 30, 2022 Remand Reconsideration Scheduling Order, Respondent, The Board of Trustees of the Galveston Wharves, hereby includes and sets forth its proposed findings of fact pursuant to 46 C.F.R. 502.214:

1. The following Findings of Fact issued by the Administrative Law Judge, Initial Decision On Remand, dated January 13, 2017, remain uncontested and germane to the resolution of this matter, and are referenced herein for inclusion and are incorporated by reference as if fully set forth at length as part of Respondent's Supplemental Findings of Fact: AJF Findings of Fact Nos. 1-5, 9-11, 13-18, 19-20, 22-25, 27-46, 54-55, 57, 59, 63, 71-76, 78, 83.¹
2. The relevant period for the determination of reparations due to Complainant under all claims subject to this remand is June 16, 2011, to July 31, 2014. (See Order on Initial Decision on Remand at 39).
3. The definition of commercial passenger vehicle in Tariff Circular No. 6 did not change from

¹ In its Order on Initial Decision on Remand, the Commission adopted these findings of fact by holding, "The ALJ made eighty-four Findings of Fact in the I.D.R., all of which are supported by the record except for FF84, and the Commission adopts them," Order on Initial Decision on Remand dated April 16, 2021 at 18.

December 17, 2007, to June 20, 2014. (CR/R 001 at 000019; CR/R 002 at 000096; and CR/R 003 at 000167).

4. The definition of ground transportation company in Tariff Circular No. 6 did not change from December 17, 2007 to June 20, 2014. (CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000168).
5. The definition of off-port parking user in Tariff Circular No. 6 did not change since 2006. from December 17, 2007 to June 20, 2014. (CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000169).
6. Under Respondent's tariffs a limousine was defined as

LIMOUSINE means a motor vehicle operated for commercial purposes that shall not have a taximeter, which is a luxury sedan with a manufacturer's rated seating capacity of not more than fifteen (15) passengers that is used for the transportation of people.

(CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000169).

7. In order for any vehicle to access Respondent's Cruise Terminals to deliver and pick up passengers they had to have a port use permit. (CR/R 001 at CR/R 000016; CR/R 002 at 000091; and CR/R 003 at CR/R 000162).
8. Because all limousines were required to register for Port Use Permits and obtain decals from Respondent to be allowed access Respondent's terminals, these fees constitute a fee for access as well as the per trip access fees charged such users. (CR/R 001 at CR/R 000016; CR/R 002 at 000091; and CR/R 003 at CR/R 000162).
9. The term "Port Use Permit" was defined in the Port's Tariffs at all times between September 1, 2006 and July 31, 2014 as

(18) PORT USE PERMIT means a valid (not suspended or revoked) and unexpired permit issued by the Port Director pursuant to this Tariff Item. A Port Use permit contains terms and conditions as described herein, or as may be amended from time to time. A Port Use

Permit grants privileges (e.g., using Galveston Wharves property for commercial purposes, supplying services at the Galveston Wharves (Port of Galveston) for which fees are imposed. Both Port Use Permits and the more specialized contracts or leases mentioned in this Tariff are types of contracts.

(CR/R 001 at CR/R 000021; CR/R 002 at CR/R 000098; and CR/R 003 at 000170).

10. From October 1, 2006 through December 17, 2007, the permit fees and fees charged for decals issued limousines accessing the Port's Cruise terminals

Note A. A separate Port Use Permit must be obtained for each of the business categories, named above, in which any business entity is engaged.

Note B. Initial and annual license fee for Persons, as defined herein, who are independent owners of single taxicab vehicles, as defined herein, Mobile Food and/or Merchandise Vendors and Line Handling Companies will be \$50. Certain liability and other insurance requirements contained in Tariff Item 600 may be modified for the above users as deemed necessary based on review of the applicant and type of business.

Note C. In addition to the annual Port Use Permit fee, ground transportation companies, as defined herein, accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27 (Cruise Ship Terminal Complex), shall be subject to the following decal and/or access fees for each vehicle that shall have such access:

Type of Vehicle and Vehicle Seating Capacity:	Decal and Access Charge:
Limousines	\$10.00 per decal per vehicle, annually

(CR/R_001 at CR/R 000017).

11. From December 17, 2007, through December 31, 2013, the permit fees and fees charged for decals issued limousines accessing the Port's Cruise terminals

Note A. A separate Port Use Permit must be obtained for each of the business categories, named above, in which any business entity is engaged.

Note B. Initial and annual license fee for Persons, as defined herein, who are independent owners of single taxicab vehicles, as defined herein, Mobile Food and/or Merchandise Vendors and Line Handling Companies will be \$50. Certain liability and other insurance requirements contained in Tariff Item 600 may be modified for the above users as deemed necessary based on review of the applicant and type of business.

Note C. In addition to the annual Port Use Permit fee, ground transportation companies, as defined herein, accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27 (Cruise Ship Terminal Complex), shall be subject to the following decal and/or access fees for each vehicle that shall have such access:

Type of Vehicle and Vehicle Seating Capacity:	Decal and Access Charge:
Limousine or Taxi and Taxicabs with Seating Capacity of nine (9) to fourteen (14) persons (**Except as noted in Notes D & E, below)	\$10.00 per decal per vehicle, annually and \$10.00 per Access I Trip
Limousines with Seating Capacity of not more than eight (8) persons	\$10.00 per decal per vehicle, annually

(CR/R 002 at CR/R 000094).

12. From November 21, 2013, the fees charged for decals issued limousines accessing the Port's Cruise terminals

- Note A.** A separate Port Use Permit must be obtained for each of the business categories, named above, in which any business entity is engaged.
- Note B.** Initial and annual license fee for Persons, as defined herein, who are independent owners of single taxicab vehicles, as defined herein, Mobile Food and/or Merchandise Vendors and Line Handling Companies will be \$50. Certain liability and other insurance requirements contained in Tariff Item 600 may be modified for the above users as deemed necessary based on review of the applicant and type of business.
- Note C.** In addition to the annual Port Use Permit fee, ground transportation companies, as defined herein, accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27 (Cruise Ship Terminal Complex), shall be subject to the following decal and/or access fees for each vehicle that shall have such access:

Type of Vehicle and Vehicle Seating Capacity:	Decal and Access Charge:
Commercial Passenger Vehicle, Courtesy Vehicle, Shuttle or Limousine with Seating Capacity of less than fifteen (15) persons (**Except as noted in Notes D & E, below)	\$15.00 per decal per vehicle, annually and \$11.43 per Access I Trip

(CR/R 003 at CR/R 000165).

13. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2011 was as follows:

2011	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/27/2011	Galveston Vehicle Escorts	\$120.00
2/2/2011	NIKKOS TRANSPORTATION	\$310.00
2/10/2011	ATLAS LIMO K.CLAYPOOL	\$70.00
2/10/2011	GREATER HOUSTON TRANS	\$395.00
2/10/2011	GREATER HOUSTON TRANS	\$115.00
2/11/2011	HARBOR EXPRESS SVS INC	\$280.00
2/11/2011	KARR LIMOUSINE SVS INC	\$190.00
2/28/2011	BLACK TIE LIMOUSINE	\$50.00
2/28/2011	CARLITOS TOWN CAR SERVI	\$50.00
3/28/2011	HOUSTON EXECUTIVE LIMO	\$150.00
4/11/2011	HOUSTON LIMO SERV	\$390.00
4/14/2011	AMERICAN TRANSPORTAION	\$80.00
4/15/2011	81ST DOLPHIN	\$80.00
4/15/2011	ENTERPRISE PKNG SERVICE	\$260.00
4/15/2011	C&S EXECUTIVE TRANSPOR	\$130.00
4/19/2011	AJ LIMO	\$110.00
4/26/2011	NIKKOS TRANSPORTATION	\$10.00
5/2/2011	ELITE LIMO	\$350.00
5/6/2011	TEXAS LIMO	\$150.00
5/11/2011	ACTION LIMO	\$150.00
5/11/2011	ACTION LIMO	\$250.00
5/19/2011	GALVESTON VEHICLE ESCO	\$10.00
6/2/2011	SAMS LIMOUISNE	\$170.00
6/3/2011	HORIZON COACH LIMOS	\$20.00
6/28/2011	MIKES LUXURY TRANSPORT	\$70.00
7/29/2011	ACTION LIMO	\$20.00
	Totals	\$3,890.00

(CR/R 004 at CR/R 000237; CR/R 078 at CR/R 000810 – 000811).

14. Prorating the fees paid for 2011 to June 16, 2011 to December 31, 2011 leaves 198 days remaining in that year or 54.25%, or \$2,110.19 applicable for 2011.

15. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2012 was as follows:

2012	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/9/2012	GALVESTON VEHICLE ESCO	\$140.00
1/18/2012	GALVESTON LIMO	\$230.00
1/27/2012	MIKES LUXURY TRANSPORT	\$70.00
1/31/2012	A AMBASSADOR LIMO	\$620.00
2/1/2012	HARBOR EXPRESS SVCS	\$100.00
2/8/2012	81ST DOLPHIN	\$80.00
3/6/2012	GALVESTON VEHICLE ESCO	\$10.00
3/6/2012	FRANKS LIMO SEDAN	\$150.00
3/8/2012	A AMBASSADOR LIMO	\$30.00
3/9/2012	AMERICAN TRANSPORT	\$70.00
3/12/2012	HOUSTON EXECUTIVE LIMO	\$150.00
3/19/2012	BLACKHORSE LIMO	\$320.00
3/19/2012	CYPRESS TOWNCAR	\$350.00
3/21/2012	ONYX LIMO	\$300.00
3/21/2012	ULTIMATE LIMO	\$290.00
3/23/2012	ONYX LIMO SVCS	\$10.00
3/23/2012	CAREY OF HOUSTON	\$200.00
3/23/2012	EMERALD LIMO	\$310.00
3/28/2012	HOUSTON LIMO	\$280.00
3/28/2012	C&S EXECUTIVES	\$120.00
3/28/2012	REPUBLIC LIMO	\$60.00
4/3/2012	CHEAP TOWN CAR AND LIMO	\$300.00
4/5/2012	24 HOUR KATY	\$290.00
4/5/2012	SHOA ZURI	\$280.00
4/5/2012	AA CORP TRANSPORTATION	\$270.00
4/9/2012	PRIDE LIMO	\$310.00
4/9/2012	AFC CORP TRANSPORTATIO	\$600.00
4/12/2012	AJ LIMO	\$10.00
4/14/2012	A AFFORDABLE SERVICES	\$310.00
4/16/2012	KNIGHT TRANSPORT	\$120.00
4/16/2012	TEXAS LIMO	\$150.00
4/17/2012	AJ LIMOUSINE	\$90.00
4/20/2012	dunic limo	\$280.00
4/25/2012	EE LIMOS	\$280.00
4/30/2012	CTI TRANSPORTATION	\$330.00
	Totals	\$7,510.00

(CR/R 079 at CR/R 000814 – 000815).

16. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2013 was as follows:

2013	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/10/2013	AJ LIMO	\$90.00
1/11/2013	KARR LIMO SVCS	\$240.00
1/11/2013	DUNIC LIMO	\$70.00
1/23/2013	BLACKHORSE LIMO AND CH	\$140.00
1/30/2013	CTI TRANSPORTATION	\$110.00
1/31/2013	S. HOUSTON LIMO, TC, & SU	\$260.00
1/31/2013	ACTION LIMO	\$250.00
1/31/2013	ACTION LIMO	\$250.00
2/3/2013	HOUSTON EXECUTIVE LIMO	\$150.00
2/3/2013	GALVESTON LIMO	\$170.00
2/4/2013	CAREY OF HOUSTON	\$200.00
2/14/2013	PRIDE LIMO	\$10.00
2/14/2013	SAM'S LIMO	\$190.00
2/14/2013	CYPRESS TOWNCAR	\$180.00
3/5/2013	LONESTAR LIMO	\$80.00
3/6/2013	C&S EXECUTIVE	\$130.00
3/6/2013	LUXIMO LIMO	\$260.00
3/25/2013	EMERALD LIMO	\$110.00
3/26/2013	KRYSTALIA LIMO	\$90.00
4/16/2013	LIMO & TOWN CAR SERVICE	\$310.00
4/23/2013	LONE STAR LIMO	\$10.00
5/19/2013	TOTALLY TX LIMO	\$140.00
5/23/2013	ROYAL LIMO & TOWN CAR	\$320.00
7/5/2013	ACTION LIMO	\$30.00
7/18/2013	KARR LIMO	\$20.00
8/5/2013	LIMO & TOWNCAR SRV	\$310
9/26/2013	81ST DOLPHIN S.ROBLEDO	\$80.00
	Totals	\$4200.00

(CR/R 080 at CR/R 000820 – 000821).

17. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2014 was as follows:

2014	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/8/2014	81ST DOLPHIN	\$105.00
1/14/2014	Karr Limo	\$305.00
1/16/2014	Totally Texas Limo Service	\$175.00
1/16/2014	Royal Limo & Town Car	\$135.00
1/16/2014	Knight Transport	\$145.00
1/22/2014	American Transport Co	\$135.00
1/23/2014	HOUSTON EXECUTIVE LIMOS	\$185.00
1/31/2014	Galveston Limo/A Limo Service	\$185.00
2/19/2014	CYPRESS TOWN CAR & LIMO	\$135.00
3/6/2014	HOUSTON CITY LIMO AIM CHART	\$125.00
3/19/2014	CTI TRANSPORTATION LLC	\$165.00
4/16/2014	REPUBLIC LIMOUSINE	\$95.00
4/16/2014	BLACKHORSE LIMO	\$205.00
5/1/2014	C&S EXECUTIVE TRANSPORTAT	\$295.00
5/28/2014	AVANTI TRANSPORTATION	\$395.00
6/6/2014	TRANSGATE LIMO	\$360.00
6/6/2014	24 HR KATY LIMO	\$105.00
6/18/2014	CHERRY LIMO TRANSPORTATIO	\$115.00
7/9/2014	S HOUSTON LIMO & TOWN CAR	\$60.00
7/18/2014	ONYX LIMO SERV	\$115.00
7/22/2014	ACTION LIMO	\$545.00
7/24/2014	GURU RAMDASS	\$90.00
7/30/2014	Z LIMO SERV INC	\$390.00
7/30/2014	GULF COAST LIMO SERV	\$150.00
7/30/2014	Z LIMO SERV INC	\$390.00
7/30/2014	GULF COAST LIMO SERV	\$150.00
7/30/2014	PRIDE LIMO SERV	\$120.00
7/31/2014	MERLO'S LIMOUSINES	\$100.00
	Totals	\$ 5,475.00

(CR/R 081 at CR/R 000825 – 000826).

18. Respondent had begun charging access fees to limousine services again as early as January 1, 2014, and consistently in June 1, 2014 and continued to do so through July of 2014. Access and charges of limousines in June and July of 2014 are also evidenced in the individual reports for each of the limousine companies included in Respondent's Supplemental Appendix Nos. 014 - 076.
19. Prorating the fees paid for 2014 through July 31, 2013, equals 212 days in that year or 58.08%, or \$3,180.00 applicable for 2014.
20. The total registration and decal fees charged to limousines during the time period relevant to this proceeding, prorated for 2011 and 2014 is as follows:

2014*	\$3,180.00
2013	\$4,200.00
2012	\$ 7,510.00
2011*	\$ 2,110.19
Total	\$ 17,000.19

* Prorated

21. From 2011 through 2014 Complainant paid \$345 in permits/decal fees to Respondents. Prorating 2011 and 2014 reduces the applicable fees to:

2011	\$ 43.40
2012	\$ 80.00
2013	\$ 80.00
2014	\$ 60.94
Total	\$ 264.34

(CR/R 004 at CR/R 000237; CR/R 078 at CR/R 000810 – 000811; CR/R 079 at CR/R 000814 – 000815; CR/R 080 at CR/R 000820 – 000821; CR/R 081 at CR/R 000825 – 000826).

22. Prior to 2008, the Wharves invoiced limousines accessing the Cruise Terminal. However, with a few exceptions, limousines are typically from out of town and access the terminal irregularly; some accessed the Cruise Terminal two times a week while others did so two times a year. Compared to

local users, such as the Complainants, overall access by limousines to the Cruise Terminal was quite small. (CR/R008 at CR/R 000251).

23. Historically, the Port determined that it had been difficult to get limousines to pay these fees. Attempting collection efforts for such small fees was deemed not to be economically feasible by the Port. (CR/R008 at CR/R 000251).

24. Limousines business differ from Complainants in that they do not provide for on-site parking during customer cruises, they infrequently access the terminals and normally bring in customers from outside the City of Galveston. Id.

25. Hurricane Ike devastated Galveston Island in September of 2008. Id.

26. After the Port resumed cruise operations the individual at the entrance of the cruise terminals failed to record access by limousines. Id.

27. This error was not discovered until May of 2014 when the Port conducted a study of traffic to, and fees charged for access to the terminals. (CR/R 008 at CR/R 000251 – 000252). There is no evidence of an intentional effort by Respondent to not charge limousines the additional access fee otherwise due under the Tariffs.

28. Following the discovery of this error in May of 2014, the Port corrected this and began charging limousines as of June 1, 2014. Id.

29. Several limousines were charged fees in 2014 prior to June 1, 2014. (CR/R 022 at CR/R 000558; CR/R 027 at CR/R 000575; CR/R 031 at CR/R 000590; CR/R 044 at CR/R 000654; CR/R 075 at CR/R 000793).

30. From January 1 to June 30, 2014 Respondent charged registered limousine services the following access charges:

Date	Name	Amount
1/27/2014	Sam's Limousine	\$600.00
3/31/2014	Karr Limo	\$ 150.00
4/30/2014	C&S Exec. Transp.	\$ 50.00
4/30/2014	Galveston Limousine Service	\$ 400.00
6/17/2014	Karr Limo	\$ 100.00
6/17/2014	Galveston Limousine Service	\$ 400.00
6/19/2014	24 HR. Katy Limousine	\$ 50.00
6/19/2014	AA Corporation	\$ 60.00
6/19/2014	Absolute Luxury Limousines	\$ 10.00
6/19/2014	Black Tie Limousine	\$ 10.00
6/19/2014	Blackhorse Limo	\$ 10.00
6/19/2014	Colony Limousine	\$ 40.00
6/19/2014	Devine Towncar & Limo	\$ 10.00
6/19/2014	Elite Limousines of Houston	\$ 10.00
6/19/2014	Extreme Elegance	\$ 10.00
6/19/2014	Houston Express Limo	\$ 10.00
6/19/2014	Karr Limo	\$ 50.00
6/19/2014	Superior Limousine & Transp	\$ 10.00
6/19/2014	Town Car Limo	\$ 10.00
6/30/2014	24 HR. Katy Limousine	\$ 20.00
6/30/2014	Absolute Luxury Limousines	\$ 10.00
6/30/2014	Abiding Limousine	\$ 20.00
6/30/2014	Action Limousine	\$ 100.00
6/30/2014	AIM Limousine	\$ 20.00
6/30/2014	American Transport	\$ 9.00
6/30/2014	Blackhorse Limo	\$ 20.00
6/30/2014	C&S Exec. Transp.	\$ 20.00
6/30/2014	Dimensions by Dan	\$ 20.00
6/30/2014	Elite Limousines of Houston	\$ 10.00
6/30/2014	Karr Limo	\$ 60.00
6/30/2014	Onyx Limousine Service	\$ 40.00
6/30/2014	Space Town Transportation	\$ 20.00
7/31/2014	ABIDING LIMOUSINE	\$20.00
7/31/2014	ACTION LIMOUSINE, INC.	\$20.00
7/31/2014	AIM LIMOUSINE	\$20.00
7/31/2014	AMERICAN TRANSPORT	\$40.00
7/31/2014	AIRPORT TRANSPORTATION	\$10.00
7/31/2014	BLACKHORSE LIMO	\$10.00
7/31/2014	CORPORATE LIMOUSINE	\$10.00

7/31/2014	MERLO'S LIMOUSINES	\$10.00
7/31/2014	ONYX LIMOUSINE SERVICE	\$30.00
7/31/2014	SPACE TOWN TRANSPORTATIO	\$20.00
7/31/2014	SOUTH HOUSTON LIMOUSINE	\$10.00
7/31/2014	TOTALLY TEXAS LIMOUSINE	\$20.00
7/31/2014	24 HR. KATY LIMOUSINE	\$10.00
7/31/2014	AMERICAN STANDARD LIMOUSIN	\$10.00
7/31/2014	SHIF LIMOUSINE	\$10.00
7/31/2014	Z LIMOUSINE SERVICES INC.	\$60.00
	Total	\$2,669.00

(CR/R_081 at CR/R 000822 – CR/R 000825).

31. During the time period including June 2011 through June 30, 2014, the \$8 per space per month fee was applied as follows:

Those Off-Port Parking Users, as defined herein, in operation and accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27, collectively the Cruise Ship Terminal Complex, as of August 15, 2006 shall, in lieu of the Access/ Trip fee, be subject to a monthly Access Fee equal to ***the amount of \$8.00 per parking space located in the Off-Port Parking User's parking facility.*** . . .

(CR/R 002 at CR/R 000094).

32. The \$8 per space fee for spaces located in the Off-Port Parking User parking facility such as the one Complainant operated was a negotiated fee which arose out of Complainant and other Off-Port Parking Users refusal to pay a per trip charge to the Port during 2005 through 2006. (CR/R 009 at CR/R 000346 – 000347).
33. The \$8 per space rate charged to Complainant resulted in significant cost savings to her during the years. (CR/R 009 at CR/R 000353).
34. In 2014 Complainant's monthly fee increased to \$780 due to her admission that she was using 96 spaces per month. (CR/R 013 at CR/R 000428).
35. From July of 2005 through July of 2006 Complainant accessed the cruise terminals with its shuttles

an average of 224 times per month which would have resulted in total access fees at the then in effect tariff of \$2,240.00. (CR/R 82 at CR/R 000828).

36. The \$400 monthly flat fee rate, if applied to July 2005 through July 2006 would be the equivalent of only charging Respondent the sum of \$1.80 per trip. Id.

37. The Port's expert Jeffery Compton opined using access numbers for Complainant in 2014 that in two months alone, Complainant saved over \$5,790.00 with the \$8 per space fee compared to the per trip rate charged others in the Tariffs:

81st Dolphin

A			B = A x 10		C		D = C x 8		E = B - D	
Month	Trips per Month (Note E)	Access Fee at \$10/Trip			Parking Spaces per Lot (Note F)	Access Fee at \$8/Parking Space			Savings Under Fixed Rate of \$8/Parking Space	
Oct-14	385	\$ 3,850			135	\$ 1,080			\$ 2,770.00	
Nov-14	410	\$ 4,100			135	\$ 1,080			\$ 3,020.00	
		<u>\$ 7,950</u>				<u>\$ 2,160</u>			<u>\$ 5,790</u>	

(CR/R 009 at CR/R 000362).

38. In October and November Complainant was under the new September 2014 Tariff and charged on a per trip basis the same as all other users of the Port. (CR/R 008 at CR/R 000250).

39. Had Complainant still been charged the flat rate for October and November of 2014, \$780 per month, the average fee paid by Complainant would have been \$1.96 per access (795 trips divided by two months of flat rate totaling \$1,560.00).

40. In 2006 Complainant realized savings of \$13,910.00 from the \$8 per space fee. CR/R 009 at CR/R 000361).

41. In 2005 and 2006 Complainant's shuttles accessed the terminals an average 224 times a month. (CR/R 082 at CR/R 000828).

42. Using Complainant's 2006 and 2014 documented access frequency as a minimum guide

Complainant realized a minimum savings from June 2011 through June 2014 between \$41,700 (3 years based on 2016 frequency) to \$104,220 (3 years based on 2014 frequency average per month). CR/R 009 at CR/R 000361 – 000362).

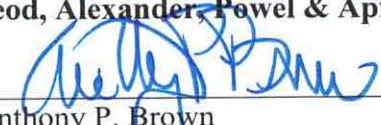
43. Complainant waived and did not appeal the Commission's rulings regarding the charging of the \$8 per space fee or the savings realized by Complainant. (See Order on Initial Decision on Remand at 31.)
44. From June 2011 through December 2011, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$2,800.00 (7 months @\$400 per space per month based on 50 spaces). CR/R 010 at CR/R 000379 – CR/R 000385). Prorating June of 2011, the \$400 fee applicable to June 16, 2011, through June 30, 2011 (15 of 30 days) was \$200.00. This resulted in a total charge of \$2,600.00 during the relevant period of time for that year.
45. From January 2012 through December 2012, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$4,800.00 (12 months @\$400 per space per month based on 50 spaces). (CR/R 010 at CR/R 000386 – 000397).
46. From January 2013 through December 2013, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$4,800.00 (12 months @\$400 per space per month based on 50 spaces). (CR/R 010 at CR/R 000408 – 000409).
47. From January 2014 through July 30, 2014, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$5,376.00 (1 month @ \$8 per space per month based on 50 spaces, and 5 months @ \$8 per space based on 96 spaces). CR/R 010 at CR/R 000410; CR/R 011 at CR/R 000411 – CR/R 000415).
48. The total amount invoiced Complainant by Respondent from June 16, 2011, through July 31, 2014 totaled \$17,566.00.

49. Though Complainant was only charged for 50 lots from June 2011 to February of 2014, Complainant admitted that her lot actually had 135 spaces. (CR/R 013 at CR/R 000428).
50. Complainant stated in her deposition that because she didn't fill up her lot, she only used 50 spaces, (CR/R 013 at CR/R 000428) even though the Port's Tariff was based on the number of spaces in her lot, being 135. (CR/R 002 at CR/R 000094).
51. Prior to this Complainant attempted to have Respondent only charge her for 30 of the 135 spaces but was unsuccessful. (CR/R 013 at CR/R 000450).
52. Complainant agreed in 2014 to increase the spaces charged to 96 from 50 increasing the flat fee from \$400 to \$780 per month. (CR/R 013 at CR/R 000428 and CR/R 011 at CR/R 000411 – 000415).
53. A 2014 aerial photograph of Complainant's lot reflects over 100 cars on her lot, even though she was only paying for 96 cars. CR/R 013 at CR/R 000475 and CR/R 013 at CR/R 000428 – 000430).
54. The difference between the \$17,576.00 charged to Complainant under the \$8 per space per month tariff rate and the \$2,669.00 access fees charged to limousines during that time period is \$14,907.00.
55. The total permit or decal fees charged to registered limousines to allow them to access Respondent's Cruise Terminals (\$16,835.85 after excluding amounts paid by Complaint for these fees) and the access fees charged to limousines during the time relevant to this matter (\$2,669.00) totals \$19,504.85.
56. The difference in total fees charged to Complainants to access the terminals during the relevant period, \$17,576.00, and the total fees charged to limousines to access the terminals during the relevant period is \$1,928.85 more charged to limousines than Complainants during the relevant period.

57. In June and July of 2014 limousines accessed the cruise terminals a total of 129 times (extrapolating the fees charged limousines for those months and the per trip fee set forth in the tariffs).
58. If limousines had been charged the same per trip average fee that the flat rate charged to Complainant, then the limousines collectively would have been charged between \$232.20 to \$252.84 per month collectively or \$2,786.40 to \$3,034.08.
59. In October and November 2014 Complainant accessed the cruise terminals 795 times.
60. Based on those numbers Respondent typically monthly accessed the terminal over 312% more times than all limousines registered with Respondent.

Respectfully submitted,

McLeod, Alexander, Powell & Apffel, P.C.

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GALVESTON WHARVES

CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this **31st day of October, 2022**, and that a true and correct copy of the foregoing was served on all counsel of record *via* email, as indicated below:

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